

Veerendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 December 2019 · Writ-C No. 40159 of 2019 · **Writ disposed of; EE may consider clause 6.14 instalments**

HEADNOTE

A second writ to quash a recovery certificate and restore supply was not entertained where the consumer, already relegated in an earlier writ to compounding under section 152 of the Electricity Act, 2003 or to the Executive Engineer under the U.P. Electricity Supply Code, 2005, had not objected to the provisional assessment. Liberty was reserved to apply for instalment payment under clause 6.14, to be considered in accordance with law.

FACTUAL SUMMARY

Veerendra Singh sought certiorari to quash an undated recovery certificate of Rs. 5,61,533 plus charges and mandamus to reconnect his supply. A provisional assessment had followed a 23 August 2014 checking report alleging theft, with notice on 20 January 2016. His earlier Writ-C No. 19049 of 2018 had been consigned to records, relegating him to compounding under section 152 of the Electricity Act, 2003 or to the Executive Engineer under the 2005 Supply Code. He filed no objection; recovery followed.

HOLDING-UNITS

HOLDING-UNIT · EA2003::152

second writ after unrepaired theft-assessment relegation

HOLDING

Where an earlier writ had already held that, if the case is theft and the checking report is unchallenged, the consumer's remedy is compounding under section 152, and if it is a provisional assessment arising out of theft, to approach the Executive Engineer under the 2005 Supply Code, a later writ to quash the recovery certificate and restore supply will not be entertained when the consumer did not file an objection or otherwise comply with that order. ¶ 1

HOLDING-UNIT · UP-2005::6.14

instalment payment of electricity dues

HOLDING

Even while declining to interfere with the recovery, the Court permitted the consumer to apply to the Executive Engineer for payment in instalments under clause 6.14 of the U.P. Electricity Supply Code, 2005, and directed that any such application may be considered and decided expeditiously in accordance with law. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 After refusing to interfere with a recovery certificate issued when the consumer had not objected to a theft-related provisional assessment as directed in an earlier writ, the Court still allowed him to apply to the Executive Engineer for instalment payment under clause 6.14, to be considered expeditiously in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE UNDATED RECOVERY CERTIFICATE AND THE UNDERLYING PROVISIONAL ASSESSMENT

The Court refused interference because the petitioner had not complied with the earlier order; it did not examine the assessment on merits. ¶ 1

NOT DECIDED — MANDAMUS TO RECONNECT SUPPLY

Sought in the writ but not granted; left to an application under clause 6.14. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.